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Case Number: 22PSCV00145 Hearing Date: July 27, 2026 Dept: 6

Plaintiffs

Tu Cheng Tsai & Hsieh Y. Tsai Trustees of the Tsai Family Trust's Request
for Entry of Default Judgment

Defendants: Roger Chui aka

Cheng H. Chui, Evergreen Tree Service, LLC, and Evergreen Tree & Disposal
Services, LLC

TENTATIVE RULING

Plaintiff's

request for entry of default judgment is GRANTED as to Defendants Evergreen Tree Service, LLC and Evergreen Tree & Disposal Services, LLC in the amount of \$429,753.09. The Court DENIES Plaintiff's default judgment request as to Defendant Roger Chui a.k.a. Cheng H. Chui and enters judgment in favor of Defendant Roger Chui a.k.a. Cheng H. Chui. The Court directs Plaintiff to submit a revised proposed judgment for the Court's review and signature.

BACKGROUND

This

is a rental dispute. On February 14, 2022, plaintiff Tu Cheng Tsai & Hsieh Y. Tsai Trustees of the Tsai Family Trust (Plaintiff) filed this action. On January 16, 2024, Plaintiff filed the operative First Amended Complaint (FAC) against defendants Kevin Chu, Roger Chui a.k.a. Cheng H. Chui, Kevin Chu & Associates, Evergreen Tree Service, LLC, Evergreen Tree & Disposal Services, LLC (collectively, Defendants) and Does 1 through 20, alleging causes of action for breach of written contract, breach of oral contract, negligence,

waste, civil conspiracy, alter ego, and unjust enrichment. On May 21, 2026, Defendant Kevin Chu was dismissed. On June 10, 2026, Defendant Kevin Chu & Associates was dismissed.

On

March 13, 2024, default was entered against Defendants Roger Chui a.k.a. Cheng H. Chui and Evergreen Tree Service, LLC.

On

September 9, 2025, default was entered against defendant Evergreen Tree & Disposal Services, LLC.

On

June 10, 2026, Plaintiff requested entry of default judgment against Defendants Roger Chui a.k.a. Cheng H. Chui, Evergreen Tree Service, LLC, and Evergreen Tree & Disposal Services, LLC.

LEGAL

STANDARD

Code of

Civil Procedure section 585 permits entry of a default judgment after a party has failed to timely respond or appear. (Code Civ. Proc., § 585.) A party seeking judgment on the default by the court must file a Request for Court Judgment and: (1) a brief summary of the case; (2) declarations or other admissible evidence in support of the judgment requested; (3) interest computations as necessary; (4) a memorandum of costs and disbursements; (5) declaration of nonmilitary status; (6) a proposed form of judgment; (7) a dismissal of all parties against whom judgment is not sought or an application for separate judgment under Code of Civil Procedure section 579, supported by a showing of grounds for each judgment; (8) exhibits as necessary; and (9) a request for attorneys' fees if allowed by statute or by the agreement of the parties. (Cal. Rules of Court, rule 3.1800, subd. (a).)

ANALYSIS

Plaintiff

seeks default judgment against Defendants Roger Chui a.k.a. Cheng H. Chui, Evergreen Tree Service, LLC, and Evergreen Tree & Disposal Services, LLC in the total amount of \$469,160.16, including \$358,600.00 in damages, \$107,976.75 in

interest, and \$2,583.41 in costs. The Court finds some problems with this default judgment package. First, the FAC alleges insufficient facts to state a cause of action against Defendant Roger Chui a.k.a. Cheng H. Chui. The FAC alleges no facts showing that Roger Chui is a party to any agreement with Plaintiff or that Roger Chui personally engaged in actions that damaged Plaintiff's property. (See FAC, ¶¶ 15-62, 70, 90-92; see *Kim v. Westmoore Partners, Inc.* (2011) 201 Cal.App.4th 267, 281 [default admits only the well pleaded allegations in the complaint].) The FAC also fails to allege sufficient facts to state a claim against Roger Chui on the basis of civil conspiracy or alter ego liability. (See FAC, ¶¶ 15-41, 63-69.) The Court therefore DENIES Plaintiff's default judgment request as to Defendant Roger Chui a.k.a. Cheng H. Chui and enters judgment in favor of Defendant Roger Chui a.k.a. Cheng H. Chui.

Second,

Defendants Evergreen Tree Service, LLC and Evergreen Tree & Disposal Services, LLC are not parties to the written lease agreement, nor does the Complaint allege sufficient facts demonstrating that they entered into an oral agreement with Plaintiff. (Compl., ¶¶ 15-53; Tu Cheng Tsai Decl., Exs. 1-2.)

Third,

Plaintiff's damage calculations are overstated. The documentary evidence Plaintiff submitted only adds up to \$352,900.00. Plaintiff also failed to redact financial account information from the check photocopies submitted per Rule 1.201, subdivision (a), of the California Rules of Court. (Tu Cheng Tsai Decl., Ex. 8; Cal. Rules of Court, rule 1.201, subd. (a).)

Fourth,

Plaintiff's prejudgment interest calculation is not only based on the incorrect principal amount as noted above, but also on the basis that 10% prejudgment interest applies to contract claims. Since Defendants Evergreen Tree Service, LLC and Evergreen Tree & Disposal Services, LLC are not parties to the written lease agreement as noted above, the applicable prejudgment interest rate would be 7% for the tort claims of negligence and waste. (See Civ. Code, § 3288; Cal. Const. Art. XV, § 1; *Children's Hosp. and Medical Center v. Bonta* (2002) 97 Cal.App.4th 740, 775 [prejudgment interest rate for non-contract claims is 7%]; *Los Angeles National Bank v. Bank of Canton* (1995) 31 Cal.App.4th 726, 745-746 [7% prejudgment interest rate applies to claims for statutory violations].)

Fifth, Plaintiff improperly included postage in the Memorandum of Costs. (CIV-100, ¶ 7, subd. (c); Code Civ. Proc., § 1033.5, subd. (b)(3).)

Based on the foregoing, the Court will award Plaintiff default judgment in the amount of \$429,753.09, including \$352,900.00 in principal damages, \$74,379.72 in prejudgment interest (7% of \$352,900.00, divided by 365, multiplied by 1099), and \$2,473.37 in costs.

CONCLUSION

Based on the foregoing, Plaintiff's request for entry of default judgment is GRANTED as to Defendants Evergreen Tree Service, LLC and Evergreen Tree & Disposal Services, LLC in the amount of \$429,753.09. The Court DENIES Plaintiff's default judgment request as to Defendant Roger Chui a.k.a. Cheng H. Chui and enters judgment in favor of Defendant Roger Chui a.k.a. Cheng H. Chui. The Court directs Plaintiff to submit a revised proposed judgment for the Court's review and signature.